

S.Selvakumar vs B.Dhanalakshmi on 3 March, 2025

Author: Sathi Kumar Sukumara Kurup

Bench: Sathi Kumar Sukumara Kurup

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 03.03.2025

CORAM :

THE HON'BLE MR. JUSTICE SATHI KUMAR SUKUMARA KURUP

Criminal Revision Case No.1041 of 2015

1. S.Selvakumar
- 2.S.Kalaivani
3. S.Senthil
4. S.Sentamil

Versus

B.Dhanalakshmi

Criminal Revision filed under Section 397 (1) r/w. 401 of Cr.P praying to set aside the Judgment dated 03.08.2015 made in C.A.No.80 2015 on the file of the learned XV Additional Sessions Judge, Chennai confirming the Judgment dated 09.04.2015 made in DVC.No.23 of 2013 on the file of the learned XV Metropolitan Magistrate, George Town, Chennai directing the petitioners not to cause any harm and directed the first Respondent to rent out a house and to pay the monthly rent for the complainant or if the first Respondent has got own house the complainant should be accommodated and further directed the first Respondent to pay sum of Rs.5,000/- per month to the complainant towards maintenance and further directed the Protection Officer to execute the order, by allow Criminal Revision.

For Petitioners	:	Mr.N.Veerasami
For Respondent	:	Mr.W.M.Abdul Azeez for Mr.S.Silambarasan

<https://www.mhc.tn.gov.in/judis>

(Uploaded on: 25/03/2025 03:39:30 pm)

ORDER

This Criminal Revision has been filed to set aside the Judgment dated 03.08.2015 made in C.A.No.80 of 2015 on the file of the learned XV Additional Sessions Judge, Chennai confirming the Judgment dated 09.04.2015 made in DVC.No.23 of 2013 on the file of the learned XV Metropolitan Magistrate, George Town, Chennai.

2. The wife had filed the petition before the learned XV Metropolitan Magistrate, Chennai in DVC.No.23 of 2013. The order passed by the learned XV Metropolitan Magistrate, Chennai in Domestic Violence Case No.23 of 2013 in favour of the Petitioner in the Domestic Violence Case. Aggrieved by the order in Domestic Violence Case No.23 of 2013 dated 09.04.2015, the Respondent in the Domestic Violence Case had preferred Crl.A.No.80 of 2015. After hearing both parties, the learned XV Additional Sessions Judge, City Civil Court by Judgment dated 03.08.2015 dismissed the Appeal and confirmed the order passed by the learned XV Metropolitan Magistrate, George Town, Chennai, dated 09.04.2015 in DVC.No.23 of 2013.

3. The brief facts, as per the complaint in DVC.No.23 of 2013 before the learned XV Metropolitan Magistrate, are as follows:-

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) 3.1. The Petitioner in DVC.No.23 of 2013 on the file of the XV Metropolitan Magistrate claims that she was married to the first Respondent.

The first Respondent in DVC.No.23 of 2013 on the file of the learned XV Metropolitan Magistrate was working as a Booking Clerk in M/s.Vijayabaskar Roadways at No.97/197, Thambuchetty Street, Chennai – 600 001. The complainant was working in the nearby premises. Since both the complainant and the first Respondent was working in the same premises. They were well acquainted to each other from 2006. The first Respondent proposed his love towards the complainant in the month of March 2008. The complainant hesitated to accept the proposal of the first Respondent as she is two years elder than the first Respondent. The first Respondent had threatened the complainant that he will commit suicide if she does not accept his proposal. On continuous persistence, the complainant accepted the proposal of the first Respondent. The first Respondent approached the brother of the complainant/B.Nagaraj for marriage. The brother of the complainant/B.Nagaraj did not accept the marriage proposal of the first Respondent with the complainant as both belong to different communities. The first Respondent continuously insisted the brother of the complainant and got his permission for their marriage on condition that the first Respondent should get permission from his parents. The marriage talk between the brother <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) of the complainant and the second Respondent, the mother of the first Respondent in which the second Respondent assured and promised that after the marriage of the third Respondent who is the elder brother of the first Respondent, she will solemnize the marriage of the complainant.

3.2. On 06.01.2013, the first Respondent is alleged to have called upon the complainant to her shop for which the complainant came to the shop, it was a Sunday, as soon as she entered the shop of the first Respondent, the first Respondent closed the shop and he made an attempt to rape which she resisted. The first Respondent manhandled her. Also on the pretext of marriage, he had sexual intercourse with the complainant. The complainant went to the mother of the first Respondent and complained for which she was abused by the elder brother and mother of the first Respondent. In 2009, the first Respondent purchased a lorry, for which he demanded the complainant help. The complainant borrowed a loan of Rs.1,50,000/- with interest at the rate of 5% per annum. The first Respondent family built a house at their native at Mannargudi for which the first Respondent pleaded her financial help for Rs.3,00,000/-, the complainant arranged the financial help with her friends. The first Respondent also demanded loan for his brothers marriage. The complainant had taken Rs.80,000/- from the Rs.1,00,000/- chit and gave it to <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) the first Respondent. The first Respondent also borrowed one and half sovereign gold chain from the complainant for performing the marriage of his elder brother and he had not returned the same till the date of filing of the complaint. Also the complainant had pledged her and her sisters jewels to repay the loans obtained by the complainant to help the first Respondent.

3.3. The first Respondent had preferred a complaint before the Commissioner of Police, Chennai which was forwarded to the All Women Police Station where a compromise took place between the first Respondent and the complainant. Thereby, the first Respondent had married the complainant on 11.04.2013 in the presence of his friends. On the same day, the first Respondent left her without informing her and absconded. The complainant went to the first Respondent's house on 10.05.2013 to meet the family members of the first Respondent seeking justice. The first Respondent was not at home. Brother and mother of the first Respondent abused the complainant with filthy language and also threatened her with the dire consequences, which forced her to file this Domestic Violence Case seeking protection under Section 19 of the Protection of Women from Domestic Violence act and seeking maintenance of Rs.12,000/- per month under Section 20 of the Protection of Women from Domestic Violence seeking compensation <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) of Rs.60,00,000/- under Section 22 of the Protection of Women from Domestic Violence.

4. The brief averments in the counter of the first Respondent are as follows:-

4.1. The Respondents 1,3 and 4 are the sons of the second Respondent. The first Respondent was employed as a Booking Clerk in M/s.Vijayabaskar Roadways at No.97/197, Thambuchetty Street, Chennai – 600 001 right from the year 2005. In the meantime, he went to Singapore due to his avocation and returned from abroad and again he started to work in the abovesaid Roadways. The complainant had been running photo Shop opposite to the M/s.Vijayabaskar Roadways. Subsequently, the business of the complainant was shifted to a portion in the building next to the shop of the M/s.Vijayabaskar roadways. Therefore, the complainant and the first Respondent got acquainted with each other. Subsequently, the complainant started taking money from the first Respondent, the complainant developed her business by

purchasing computer, colour printing and astrology and so on.

The first Respondent is six years younger than the complainant. The fourth Respondent is the elder brother of the first Respondent also returned from Singapore and taken over the business from his brother, who is the third <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) Respondent. Thereby, the first Respondent became short of running cash and unable to satisfy the demands of the complainant. Hence, the complainant threatened the first Respondent that she will commit suicide if the first Respondent has not married her.

4.2. On 11.04.2013, the complainant preferred a complaint to the Police for which the Respondents are required to answer All Women Police Station, C-5 Kothaval Chavadi, where the Police Officials compelled the first Respondent to marry the complainant. Hence, the first Respondent tied Thali around the neck of the complainant under force and threat, following which, they exchanged garlands and took photograph through mobile phone as if the marriage was solemnized as per Hindu Rites and Customs on 11.04.2013. Thereafter, the first Respondent was allowed to go to his house. Again, the complainant preferred a complaint to the H-4 Police Station on 15.04.2013, based on which CSR.No.44 of 2013 was registered.

4.3. On apprehension of arrest by the Officers of H-4 Police Station, the first Respondent filed anticipatory bail application before the learned Principal Sessions Judge, Chennai in Crl.M.P.No.5727 of 2013 in which anticipatory bail was granted to the first Respondent on 08.05.2013. On coming to know about the <https://www.mhc.tn.gov.in/judis> grant (Uploaded of anticipatory on: 25/03/2025 03:39:30 pm) bail in favour of the first Respondent by the learned Principal Sessions Judge, Chennai. the complainant along with her henchman and press persons went to the Respondent house situated at Mugappair and tried to trespass into the residence on 10.05.2013. The same was resisted by the family of the first Respondent. The complainant along with her henchmen held a Dharna in front of the residence of the Respondents. The Inspector of Police, V-3, J.J.Nagar Police Station came to the spot and brought the complainant and henchmen and also to the Respondent to the Police Station. Under the guise of enquiry and on the pressure exerted by the complainant and henchmen and press people, the Inspector of Police V-3, J.J.Nagar Police Station registered FIR under Sections 498-A, 506 (i) of IPC read with Section 4 of the Tamil Nadu Protection of Women Harassment Act in Crime No.485 of 2013. On 11.05.2013, the first Respondent was sent to judicial custody by the Jurisdictional Magistrate. He spent 18 days remand and subsequently he was released on bail on 25.08.2013 with condition. The condition was subsequently relaxed. The Respondent moved Anticipatory Bail before the Hon'ble High Court in Crl.O.P.No.12593 of 2013 and 12609 of 2013 for which also the Hon'ble High Court was pleased to grant anticipatory bail for them by order dated 24.05.2013.

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) 4.4. The Respondent claim that the alleged marriage held on 11.04.2013 between the complainant and first Respondent at Kaligambal Temple under threat of Police Officials of the All Women Police Station, Kothavalchavadi. Only on the basis of the above said photograph, the complainant had preferred this DVC.No. 23 of 2013 under Sections 12, 18, 19, 20 and 22 (i) (c) of Protection of Women from Domestic Violence Act, 2005. The first Respondent denies as false and incorrect, the claim of the

complainant and the first Respondent proposed to the complainant and she has objected to accept the proposal. The first Respondent threatened her that he will commit suicide if she refused to accept his proposal. The claim of the complainant that the first Respondent approached the brother of the complainant/B.Nagaraj to marry the complainant which was also resisted by her brother as they hail from different community, Finally, B.Nagaraj agreed to solemnize the marriage only with the permission of the parents of the first Respondent.

4.5. The claim made by the complainant that the first Respondent attempted to rape her on 06.01.2013 is also denied. The claim made by the complainant that the first Respondent borrowed money from the complainant, the complainant made arrangements for loan on financial help to the first <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) Respondent are all denied. The claim of the complainant that she arranged loan for purchase of lorry, for construction of house and for performing the marriage of the elder brother of the first Respondent are all denied. The claim of the complainant that she is the wife of the first Respondent is also denied. The claim is made based on marriage performed under threat and duress by the Police Officials, Kothavalchavadi which is not a recognized marriage. Therefore, seeks to dismiss this Petition on the ground that the complainant is not entitled to any relief sought for in this Petition.

5. The learned XV Metropolitan Magistrate, after holding enquiry, on the basis of the evidence adduced by both parties and on appreciation of evidence had passed orders whereby the learned XV Metropolitan Magistrate directed the first Respondent not to cause harm either directly or mentally to the complaint and also issue direction to the first Respondent to rent out the house and to pay the monthly rent for the complainant. If the first Respondent has got own house, the complainant should be accommodated and she should not be disturbed in monetary wise. The first Respondent is also directed to pay Rs.5,000/- per month to the complainant towards maintenance and further directing the Protection Officer to execute the order and send a report within a month. Aggrieved by the same, the first Respondent in Domestic Violence <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) Case No.23 of 2013 preferred the Criminal Appeal No. 80 of 2015. After hearing both parties, the learned XV Additional Sessions Judge, Chennai had dismissed the Appeal in C.A.No.80 of 2015 and confirmed the order.

6. The learned Counsel for the Petitioner submitted that pending this Revision, the first Respondent in the Domestic Violence Case had filed a suit in O.S.No.163 of 2015 to declare the defendant in the suit as not the wife of the Plaintiff. The complainant in DVC.No.23 of 2013 had preferred HMOP.No.910 of 2014 under Section 9 of the Hindu Marriage Act seeking restitution of conjugal rights. The learned Judge, Family Court taken up both the cases as joint trial. The Suit filed by the first Respondent in Domestic Violence Case No.23 of 2013 on the file of the learned XV Metropolitan Magistrate as Plaintiff in O.S.No.164 of 2015 was dismissed. The HMOP filed by the complainant in Domestic Violence Case No.23 of 2013 on the file of the learned XV Metropolitan Magistrate as Petitioner in HMOP.No.910 of 2014 was decreed in favour of the the Complainant. The Domestic Violence Case was filed on 05.06.2013; HMOP.No.910 of 2014 was filed on 07.03.2014; and the suit in O.S.No.164 of 2015 was filed on 08.06.2015.

7. The learned Counsel for the Revision Petitioner invited the attention of this Court (to <https://www.mhc.tn.gov.in/judis> the on:

Uploaded typed set03:39:30
25/03/2025 filedpmby
) the Revis

pleadings in HMOP.No.910 of 2014. The relevant portion reads as follows:

“11. I further submit that I gave a complaint before the Commissioner of Police and the same was forwarded to W12 All Women Police Station and on compromise the Respondent married me before friends at Arulmigu Kaligaambal Temple on Thambuchetty Street, Parrys at 11.04.2013, and left me on the same day and absconded.”

8. As per the evidence available before the trial Court/Family Court, there is no evidence that both lived as husband and wife under the same roof.

9. Aggrieved by the dismissal of the suit, the Plaintiff in O.S.No.164 of 2015 had preferred A.S.No.417 of 2023. Against the grant of decree in HMOP.No.910 of 2014, the Respondent in HMOP.No.910 of 2014 had preferred CMA.No. 140 of 2023.

10. The learned Counsel for the Revision Petitioner invited the attention of this Court to Section 2 of the Domestic Violence Act. As per the averments in the Domestic Violence Case, the marriage took place on 11.04.2013 by 5 p.m. in Kaligambal Temple. Immediately, after the marriage, husband left. Therefore, the claim of, “shared household” is not attracted. Domestic relationship is also absent. In this case, the domestic violence branch of law is only in exchange of notice, tying of Thali alone will not be treated as a valid marriage <https://www.mhc.tn.gov.in/judis> where (Uploaded on: the marriage 25/03/2025 03:39:30 will pm) not be completed without following the customary rites of marriage. There must be relationship of husband and wife, it should attract the Provisions of Section 2 of the Domestic Violence Act to treat the complainant in Domestic Violence Case No.23 of 2013 as wife, shared household. Immediately after marriage, P.W-1 left on his own. The Domestic Violence Act is not at all applicable in the facts of this case. Both the Courts failed to consider the subject matter of the complaint in its proper perspective.

11. The learned Counsel for the Revision Petitioner invited the attention of this Court to the evidence of P.W-1. The relevant portion reads as follows:

“13/02/2013.

jpUkzj;jpw;F gpwF ehd; vd; tPl;oYk;

mtu; mtu; tPl;oYk; ,Ue;jhu;/ 11/04/2013 jpUkzj;jpw;F gpwF ehd; md;iwa jpdnk vd;id
tplL ; tplL ; brd;W tpll; hu;/ jpUkzj;jpw;F gpwF eh';fs; fztd; kidtpahf thHtpyi ; y
vd;why; jpUkzj;jpw;F Kd;ng fztd;

kidtpahf thH;e;njhk;”/

12. The learned Counsel for the Revision Petitioner invited the attention of this Court to the discussion of evidence by the learned XV Metropolitan Magistrate, Chennai in DVC.No.23 of 2013. The relevant portion reads as follows:-

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm)
“k/j/rh/1 jd;Dila FWf;F tprhuizapd; nghJ fhspfhk;ghs; nfhtpYf;F 1Mk; vjpu;kDjhUU;
miHj;J brd;W nghyPrhu; Kd;dpiyapy; mtu; fl;lhag;gLj;jp jpUkzk; bra;ag;gl;lJ vd;why;
mJ jpUkzknk my;y/ mJ ,e;J Kiwg;go eilbgw;w jpUkzk; vd;why; mJ rupay;y/
13/02/2013 jpUkzj;jpw;F gpwF ehd; vd; tPl; Yk; mtu; mtu; tPl;onya[k; ,Ue;jhu;/
13/04/2013 jpUkzj;jpw;F gpwF md;iwa jpdnk vd;id tpl;LtplL ; brd;Wtpll; hu;/
jpUkzj;jpw;F gpwF eh';fs; fztd; kidtpahf thHtpyi ; y vd;why; jpUkzj;jpw;F Kd;ng fztd;

kidtpahf thH;e;njhk; vd;W Twpa[s;shu;.

k/j/rh/2 jdJ KJy; tprhuizapy; ////////// fhty; epiyaj;jpw;F brd;W midtUk;
fhspfhk;ghs; nfhtpYf;F te;njhk;/ 1Mk; vjpu;kDjhUU; jug;gpypUe;J ahUk; tutpyi ; y/
fhty; epiyaj;jpy; 1Mk; vjpu;kDjhUU; jhd; fy;ahzk; bra;Jbfhs;tjhf vGjpf;bflLj;JtplL ;
brd;whu;/ 13/02/2013 md;W jpUkzk; eilbgw;w tptuj;ij fhtyuplk; Twpndhk;. 2Kiw
,e;J Kiwg;go jpUkzk; bra;Jbfhs;s KoahJ vd;why; rupjhd;/ KJy; jpUkzj;ij 1Mk;
vjpu;kDjhUU; kWj;Jtpl;lJhy; rhl;rpaj;njhL 2tJ jpUkzk; bra;a neupll; J vd;W rhl;rpak;
mspj;Js;shu;/ k/j/rh/3 jdJ FWf;F tprhuizapy; 11/04/2013md;W jpUkzk; Koe;j gpwF
2 kzpneuk; fHjp;J vdf;F bjhiyngrp K:yk; jfty; brhd;dhu;fs;/ 2 Kiw jpUkzk; ele;j gpwF
kDjhUU; brhy;ypjhd; bjupa[k; vd;why; rupjhd;/ 2 Kiw jpUkzk; ele;jJ bgha; vd;whYk;
ehd; bgha;

rhl;rpak; mspf;fpnwd; vd;whYk; rup my;y/ 11/04/2013 md;W md;iwa jpdnk kDjhUU; tplL ; tplL ;

brd;Wtpl;lhu;/ mija[k; kDjhUU; jhd; vd;dpLk;
brhd;dhu;/ 11/04/2013 mjw;F gpwF mtu;fs; nru;e;J

thH;e;jhu;fsh vd;why; ,y;iy vd;W rhl;rpak; mspj;Js;shu;/ k/j/rh/4 jdJ FWf;F tprhuizapy;
13/02/2013 md;W <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm)
fhspfhk;ghs; nfhtpypy; itj;J jpUkzk; ele;jJ gw;wp vdf;F bjupa[k;/ KJypy; ele;j jpUkzj;ij gw;wp vd;Dila
gpukhz thf;FK:yj;jpy; Twpa[s;nsdh vd;why; brhy;ytpyi; y/ 11/04/2013 md;W ehd; fhty; epiyaj;jpw;F
brd;nwd;/ eh';fs; 4 ngu;fs; brd;nwhk;/ fhiy 10ypUe;J khiy 4 kzptiu tprhuiz eilbgw;wJ/ fhty;

epiyaj;jpy; mtu;fs; mk;kh jtpu kw;wtu;fs; ,Ue;jhu;fs;/ nghyP!; epiyaj;jpypUe;J neuoahf fhspfhk;ghs;
nfhtpYf;F brd;nwhk;/ bgz; nghyPrhu; te;J 1Mk; vjpu;kDjhUU; jhyp fl;l brhd;dhu;fs; vd;why; rupay;y/
nghyPrhu; tutpyi; y vd;Wk; jpUkzk; Koe;j gpwF 1Mk; vjpu;kDjhUU;

KdjhuUk; tPlo; w;F bry;Yk;nghJ vr; rpy; Jg;gptpL ; tUfpnwd; vd;W fhzhky; ngha;tpl;lhu;/ ,e;j tptuj;ij ehd; vd;Dila gpukhz thf;FK:yj;jpy; brhy;ytpyi ; y vd;Wk; rhl;rpak; mspj;Js;shu;/ nkW;go rhl;rpfs; kw;Wk; rhd;W Mtz';fis guprPypj;Jg; ghu;f;Fk;nghJ kDjhui. 1k; vjpu;kDjhui; ,e;J nfhtpyp; itj;J jpUkzk; eilg;bgw;Ws;sJ vd;gJ cz;ik vd;W ,e;ePjpkd;wk; fUJfpwJ/ Vbdd;why; 1Mk; vjpu;kDjhui; ,e;j tHf;fpy; j';fSf;F brd;id jk;g[brl;o bjUtpy; cs;s fhspfhk;ghs; nfhtpyp; itj;J jpUkzk; eilg;bgw;wJ vd;Wk; . me;j jpUkzk; jdf;F fl;lhakhf elj;jp itf;fg;gl;Ls;sJ vd;W Twp cs;sij guprPypj;J ghu;f;Fk;nghJ jpUkzk; eilg;bgw;wJ cz;ik vd;Wk;

,e;ePjpkd;wk; fUJfpwJ/ jpUkzk; eilbgw;wJ cz;ik vd;W kDjhui; jug;gpy; jFe;j rhl;rpfs; kw;Wk;

rhd;whtz';fspd; mog;gilapy; re;njfi;jpw;F ,lkpd;wp epU:gpf;fg;gl;ljhft ,e;ePjpkd;wk; fUJfpwJ/”

13. The learned Counsel for the Revision Petitioner invited the attention of this Court to the Sections 2 (f) and 2 (s) of the Protection of Women from Domestic Violence Act which reads as follows:-

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm)
 “Section 2 (f) “Domestic relationship” means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage or through a relationship in the nature of marriage, adoption or are family members living together as a Joint family.

Section 2 (s) “Shared household” means a household where the person aggrieved lives or at any stage has lived in a domestic relationship either singly or alongwith the Respondent and includes such a household whether owned or tenanted either jointly by the aggrieved person and the Respondent, or owned or tenanted by either of them in respect of which either the aggrieved person or the Respondent or both jointly or singly have any right, title, interest or equity and includes such a household which may belong to the joint family of which the Respondent is a member, irrespective of whether the Respondent or the aggrieved person has any right, title or interest in the shared household.”

14. The learned Counsel for the Revision Petitioner invited the attention of this Court to the Judgment of the learned XV Additional Sessions Judge, Chennai in C.A.No.80 of 2015. The relevant portion reads as follows:-

“12..... It is relevant to mention the Section 12 (1) (c) and Section 12 (2) (b) of Hindu Marriage Act, 1955. Section 12 (1) (c) which speaks about 12 (1) Voidable marriages: (1) Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds, namely: 12 (1) (c) that the consent of the Petitioner, or where the consent of the guardian in marriage of the Petitioner required under Sec. 5, as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978 (2 of 1978), the consent of such guardian was obtained by force (or by fraud as to the nature of the ceremony or as to any material fact or

circumstance concerning the Respondent).”

15. In cases under Domestic Violence, there shall be joined shared household to presume there
<https://www.mhc.tn.gov.in/judis> was on:

(Uploaded man and woman 25/03/2025 03:39:30 pmrelationship) in a matrimonial relationship. Both the learned Metropolitan Magistrate as trial Judge and the learned XV Additional Sessions Judge as Appellate Court Judge did not discuss the Domestic Violence Act. Therefore, the finding of the learned XV Metropolitan Magistrate and the learned XV Additional District and Sessions Judge, Chennai, City Civil Court are perverse and are to be set aside.

16. The learned Counsel for the Respondent vehemently objected to the line of the argument of the learned Counsel for the Revision Petitioner as per the submission of the learned Counsel for the Respondent, judgment of the learned XV Metropolitan Magistrate in DVC.No.23 of 2013 dated 09.04.2015 is a well-reasoned order it does not warrant any interference by this Court.

17. The learned Counsel for the Respondent also invited the attention of this Court to the common order passed by the learned Judge, Family Court in O.S.No.164 of 2015 and HMOP.No.910 of 2014. The first Respondent in Domestic Violence Case having filed suit seeking declaration that the marriage is null and void was on the basis of appreciation of evidence, dismissed on the same set of evidence, based on the appreciation evidence. The petition preferred by the complainant in Domestic Violence Case No.23 of 2013 as Petitioner in HMOP.No.910 of 2014 was decreed. Against which, Appeal pending as on (the <https://www.mhc.tn.gov.in/judis> date.

Uploaded The learned on: 25/03/2025 03:39:30 pm) Judge, Family Court had dismissed the suit for declaration that the defendant is not the wife of the Plaintiff in the suit. The petition by the complainant in Domestic Violence Case No.23 of 2013 as Petitioner seeking restitution of conjugal rights was allowed. Against the HMOP.No.910 of 2014, CMA filed and no stay had been granted.

18. The learned Counsel for the Respondent invited the attention of this Court to Section 2 (f) of Domestic Violence Act in Judgment in DVC.No.23 of 2013. The relevant portion reads as follows:-

“Section 2 (f) “Domestic relationship” means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage or through a relationship in the nature of marriage, adoption or are family members living together as a Joint family. vd;w tiuaiuahdJ ,e;j tHf;if bghWj;jtiuapy; ,UtUf;Fkhd cwt[jpUkz ge;jj;jpd; tpisthf Vw;gl;lJ vd;nw ,e;pJpkd;wk; fUJfpdw; J/ 1Mk; vjpu;kDjhUU; kDjhuiU jpUkzk; bra;JtplL ; jw;nghJ me;j jpUkzk; rl;lgoahd jpUkzk; ,y;iy vd;Wk;. mjdhy; kDjhuUld; nru;e;J thHKOahJ vd;W kWj;J tUtJjhd; ,e;j tHf;fhFk;/ 11/04/2013 md;Wk; 1Mk; vjpu;kDjhuUf;F eilbgw;w jpUkzk; rl;lgoahd jpUkzk; ,y;iy vd;Wk;. mJ ,y;yh epiyaJ vd;Wk;. cj;jut[gpwg;gpff; ntz;Lk; vd;Wk;. ,e;j tHf;F nghLtjw;F Kd;ngh my;yJ ,e;j tHf;F jhf;fy; bra;tjw;F gpd;ngh jFe;j Flk;g ey ePjpkd;wj;jpy; ve;j kDt[k; jhf;fy;

bra;ahjJ vjpu;kDjhUU;fSf;F ,Hg;ghfnt ,e;ePjpkd;wk; fUJfpwJ/ v/j/rh/M 1 rl;l mwptpg;g[xd;W kl;Lnk 11/04/2014 md;W eilbgw;w jpUkzj;ij ,y;yhepiy MfhJ vd;nw ,e;ePjpkd;wk; fUJfpwJ/" <https://www.mhc.tn.gov.in/judis> The learned Counsel (Uploaded on:for the Respondent/wife 25/03/2025 03:39:30 pm) invited the attention of this Court to Section 2 (f) of the Act, share household is not mandatory domestic relationship means who live at any point of time when they are related by consanguinity. The Judgment of the learned Judge, Family Court in granting decree in favour of the Petitioner/wife in HMOP itself on the basis of evidence. Therefore, the claim of domestic relationship is established as per Section 2 of the Domestic Violence Act. Since no stay had been granted by the Hon'ble High Court till date against the finding of the learned Judge, Family Court, this Criminal Revision case had to be dismissed as having no merits.

Point for consideration:-

Whether the Judgment dated 03.08.2015 made in C.A.No.80 of 2015 on the file of the learned XV Additional Sessions Judge, Chennai confirming the Judgment dated 09.04.2015 made in DVC.No.23 of 2013 on the file of the learned XV Metropolitan Magistrate, George Town, Chennai, is to be set aside as perverse?

20. Heard the learned Counsel for the Revision Petitioners and the learned Counsel for the Respondents. Perused the Judgment dated 03.08.2015 made in C.A.No.80 of 2015 on the file of the learned XV Additional Sessions Judge, Chennai and the Judgment dated 09.04.2015 made in DVC.No.23 of <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) 2013 on the file of the learned XV Metropolitan Magistrate, George Town, Chennai.

21. The Revision Court cannot sit in Appeal against the finding of the trial Court. Already, the learned XV Judge, City Civil Court as Court of Appeal had assessed the evidence independently, the evidence before the learned XV Metropolitan Magistrate and had arrived at a conclusion, thereby confirmed the finding recorded by the learned XV Metropolitan Magistrate. The grounds of Revision that both the Courts failed to appreciate evidence in the light of the Protection of Women from Domestic Violence Act is found unacceptable in the light of the discussion of evidence by the learned XV Metropolitan Magistrate in DVC and the light of the Judgment in C.A.No.80 of 2015. The submission of the learned Counsel for the Revision Petitioner that the suit filed by the first Respondent in Domestic Violence Case No.23 of 2013 on the file of the learned XV Metropolitan Magistrate as Plaintiff before the learned Judge, Family Court was dismissed. Against which, Appeal is filed will not hold good regarding setting aside the finding of the trial Court as confirmed by the Appellate Court. Till date, there is no stay against the order of the learned Judge, Family Court in the common Judgment passed in the suit filed first Respondent in Domestic Violence Case and the <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) petition in HMOP filed by the complainant in Domestic Violence Case.

Therefore, the claim that there is no relationship to attract the Provisions of Domestic Violence Act is found unacceptable.

22. From the earlier hearing dates, the adjudication passed by the learned Judge of this Court whenever this case came up earlier the Revision Petitioner sought time before the learned Judges of this Court who presided over the roster. When the case came up before this Court on 18.08.2022, the Revision case was adjourned that the finding by the learned Judge of this Court, “Family Court will have a direct bearing in deciding the Revision petition.” which reads as follows:-

“The learned Counsel for the Petitioner states that the very factum of marriage, which is alleged to have been taken place at Kalikambal Temple, is disputed as a void marriage Solemnized under threat and the dispute of non-cohabitation has been raised in the Divorce Petition, pending in H.M.O.P.No.164 of 2015, on the file of the IV Additional Family Court, Chennai. The said petition is under trial and it comes to logical end soon.

2. Therefore, the learned Counsel for the Petitioner seeks adjournment on the ground that the findings of the Family Court in Divorce petition will have a direct bearing in deciding this Revision Petition.”

23. Again when the matter came up for hearing before another learned Judge of this Court dated 04.01.2023, which reads as follows:-

<https://www.mhc.tn.gov.in/judis> “Learned Counsel (Uploadedfor the Petitioner on: 25/03/2025 03:39:30 pm referring) to the order passed by this Court dated 18.08.2022 submitted that the very factum of marriage solemnized between the Petitioner and Respondent is disputed and this Court adjourned the case finding that the divorce petition pending in O.S.No.164 of 2015 before the IV Additional Family Court, Chennai will have a direct bearing in deciding this Revision petition.

2. Learned Counsel for the Respondent submitted that the case is posted on 06.01.2023 for examination of further Defence witnesses.

At any cost, the examination of Defence witnesses will be completed within a short period and thereafter it is only for advancement of arguments.

3. In view of the same, this Court directs the IV Additional Family Court, Chennai to complete the trial in O.S.No.164 of 2015 and H.M.O.P.No.910 of 2014 and bring them to the logical end within a period of two months from today.”

24. The finding of the learned Judge of this Court dated 04.01.2023, Family Court in O.S.No.164 of 2015 and HMOP.No.910 of 2014 “will bring them to logical end.”

25. Therefore, subsequently it came up before another learned Judge of this Court dated 14.03.2023, again it was adjourned which reads as follows:-

“Pursuant to the earlier orders passed by this Court on 04.01.2023, the matter was posting for hearing today.

2.The learned Counsel appearing on either side submitted that recording evidence has been completed and the case is posted for final hearing before the IV Additional Family Court, Chennai on 17.03.2023. It was submitted by the Counsel appearing on either side that they will complete the final hearing at the earliest.

<https://www.mhc.tn.gov.in/judis> 3. This Court(Uploaded had already directed on: 25/03/2025 the) Family Court to 03:39:30 pm dispose of the case, within two months vide the earlier order dated 04.01.2023. However, since the final arguments is going to commence only on 17.03.2023, this Court is inclined to give some more time for the Family Court to complete the proceedings. In view of the same, the IV Additional Family Court, Chennai is directed to finally hear the case in O.S.No.164 of 2015 and HMOP No.910 of 2014 and pass final judgment on or before 15.04.2023.”

26. Therefore, it is found that the Revision Petitioner himself had sought adjournment on the ground that adducing evidence before the Family Court will help the Revision Court to consider the finding of the learned Judge, Family Court which was accepted by three Judges of this Court independently. In the light of the fact that the suit filed by the Revision Petitioner that the defendant in the suit in O.S.No.614 of 2015 is not the wife of the Plaintiff was rejected holding that marriage held in Kaligambal Temple, exchange of garlands and which was registered was found proper. Therefore, the claim by the Revision Petitioner that he is not the husband of the Respondent had been rejected. It is to be noted that the learned XV Metropolitan Magistrate had on appreciation of evidence before him had rejected the claim of the first Respondent in the Domestic Violence Case and arrived at a conclusion that the claim of the complainant is accepted in the light of the Provision of Protection of Women from Domestic Violence and granted the relief to the complainant. The first Respondent in Domestic <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) Violence Case had filed a suit seeking declaration that the defendant in the suit is not a wife of the Plaintiff, the complainant in the Domestic Violence Case as Petitioner in HMOP filed under Section 9 of the Hindu Marriage Act, seeking restitution of conjugal rights. Both petitions, HMOP and the suit was taken up together for trial and on the basis of evidence produced by both parties and on the basis of appreciation of evidence, the learned Additional Principal Judge-IV, Family Court, Chennai had on the appreciation evidence before him had arrived at the same conclusion as that of the learned XV Metropolitan Magistrate, rejecting the contention of the first Respondent in Domestic Violence Case before the learned XV Metropolitan Magistrate independently. On appreciation of evidence by the learned Additional Principal Judge- IV and also on appreciation of evidence independently before him had come to the same conclusion. Therefore, two different Courts on the basis of evidence adduced by both parties, come to the same conclusion. Therefore, on the basis of appreciation of evidence independently by the learned XV Additional Judge, City Civil Court, confirming the finding of the learned XV Metropolitan Magistrate is found justified. This Court as Revision Court cannot re-appreciate the evidence as that of Appellate Court. Therefore, this

Revision lacks merits and is to be dismissed. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm)

27. In the light of the above discussions, the point for consideration is answered in favour of the Respondent and against the Petitioner. The Judgment dated 03.08.2015 made in C.A.No.80 of 2015 on the file of the learned XV Additional Sessions Judge, Chennai confirming the Judgment dated 09.04.2015 made in DVC.No.23 of 2013 on the file of the learned XV Metropolitan Magistrate, George Town, Chennai, is found proper and the same is to be confirmed.

In the result, this Criminal Revision Case is dismissed as having no merits imposing with heavy cost of Rs.2,00,000/- (Rupees Two Lakhs only) on the Petitioner. The Judgment dated 03.08.2015 made in C.A.No.80 of 2015 on the file of the learned XV Additional Sessions Judge, Chennai confirming the Judgment dated 09.04.2015 made in DVC.No.23 of 2013 on the file of the learned XV Metropolitan Magistrate, George Town, Chennai is confirmed.

03.03.2025 dh Index: Yes/No Internet: Yes/No Speaking Order/Non-speaking Order
<https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm) SATHI KUMAR
SUKUMARA KURUP, J dh To

1. The Judge, Family Court, Chennai.
2. The XV Metropolitan Magistrate, George Town, Chennai.
3. The Additional Principal Judge – IV, City Civil Court, Chennai.
4. The XV Additional Sessions Judge, Chennai.
5. The Section Officer, Criminal Section, High Court Madras.

Order made in 03.03.2025 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 25/03/2025 03:39:30 pm)